

Dear Mr. Secretary General,

The National Directorate-General for Aliens Policing (hereinafter: Directorate-General) has received inquiries from a number of professional organisations, educational institutions, students and embassies accredited to Hungary regarding the possibilities for **foreign students from third countries with higher education qualifications acquired in Hungary of seeking a job in Hungary and finding a job in the labour market, as well as the status of visiting lecturers, language consultants and researchers.**

Please be informed that pursuant to Section 225 (m) of Act XC of 2023 on General Rules for the Admission and Right of Residence of Third-Country Nationals (hereinafter: Act XC of 2023.), which entered into force on 1 January 2024 and was amended on 1 January 2025, third-country nationals holding a valid residence permit for the purpose of studies **shall apply for a residence permit for the purpose of seeking a job or for the purpose of starting a business after successfully completing their studies**, for which purpose their stay may be permitted for a maximum period of 9 months.

In addition to the above, if a third-country national student wishes to undertake a job immediately after graduation, (s)he may apply for the withdrawal of his/her residence permit for the purpose of studies, voluntarily fulfil his/her obligation to leave the country and submit his/her application for a residence permit upon his/her return home via a diplomatic mission or via the Enter Hungary platform by way of his/her employer in the applicant's absence, as provided by law, or, students who are able to travel visa-free, may return to Hungary after their departure from the country and submit their application in person or via the Enter Hungary platform.

Please be informed that in case of withdrawal of their previous residence permits, persons with the right of visa-free travel are not entitled to continue staying in the territory of Schengen Member States as such, but there is no obstacle to their subsequent visa-free return to Hungary.

Based on Section 225 i) of Act XC of 2023, third-country nationals holding a valid residence permit for the purpose of seeking a job or for the purpose of starting a business **may apply for a Hungarian Card, EU Blue Card or residence permit for guest self-employment. Application for any other type of residence permit** may be submitted by a client if (s)he has applied to the Directorate-General for the cancellation of his/her valid residence permit for the purpose of seeking a job or starting a business.

The rules for the residence permit called Hungarian Card are incorporated in Section 36 of Act XC of 2023, the rules for EU Blue Card are in Section 37 of the Act XC of 2023, the rules for researchers are incorporated in Sections 43-47 of the Act XC of 2023, the rules for permits for official purposes are in Section 60 of Act XC of 2023, while the rules for the residence permit for the purpose of guest self-employment are incorporated in Section 21 of Act XC of 2023.

Please be informed that students and lecturers are kindly requested to take into account that the residence permit for the purpose of the **Hungarian Card** is issued on the basis of the Communication of the Minister responsible for Culture and Innovation on the scope of professional qualifications established as a prerequisite for the Hungarian Card (Official Gazette, No 12, 2024), only foreigners with certain professional qualifications obtained abroad (professional qualifications in the field of information technology, engineering or natural sciences, in the field of singing and music, in the field of folk music and folk culture or in the field of music), as defined in Annexes 2 and 3 of Decree no. 65/2021 of the Ministry of Innovation and Technology (of 29 December) on the list of qualifications and the establishment of new courses in higher education may be granted the Hungarian Card.

A residence permit for **guest self-employment** may be granted to a person who is self-employed or is an executive official of a business, organisation or other legal person, established for the purpose of gainful activity, undertaking activities in our country.

The **EU Blue Card** can be issued to foreigners who have a higher education qualification relevant for the performance of their job and whose wages in 2025 are in line with the minimum wage in accordance with the Minister of National Economy's announcement in the Decree no. 44/2011 (of 16 December) of the Ministry of National Economy (hereinafter referred to as Decree no. 44/2011) reaches the minimum monthly wage according to Section 3 (1) (HUF 883 671, in certain jobs HUF 706 937).

A residence permit for **official purposes** may be issued to third-country nationals who are seeking admission to the territory of Hungary as persons enjoying any special privileges and immunities under diplomatic relations or international law, including the family members of such persons; members of an official delegation of a foreign state or foreign government body, or of an international organization; journalists; within the framework of an international convention, international cooperation or an intergovernmental aid program in the field of education, science or culture or participating in continuing professional training; as a staff member of a scientific, education and cultural institution operating in Hungary under an international convention or as a person seeking admission in connection with the activities of such institutions.

A **research-based** residence permit is granted to a researcher with a research agreement between the parties who holds a doctoral degree or an appropriate higher qualification for participation in doctoral programmes and whose research is carried out in an accredited research organisation. Please be informed that a residence permit for the purpose of research can only be issued if the above conditions are met, in their absence, third-country nationals holding a valid student status certificate can be granted a residence permit for the purpose of studies.

If the graduate student and the guest lecturer or language tutor do not fall within any of the above purposes of residence, it is possible, within a narrow framework, to apply for a **residence permit for the purpose of employment**. According to Government Decree no. 450/2024 (of 23 December) on the employment of guest workers in Hungary (hereinafter: Government Decree no. 450/2024), the possibility to apply for a residence permit for the purpose of employment for the first time is currently available for Filipino, Armenian and Georgian nationals (Section 28 of the Act XC of 2023).

For certain third-country nationals, it is possible to apply for a **National Card** whose purpose of residence is to carry out actual work on the basis of an employment relationship, for remuneration, for or under the direction of another person, including working through temporary work agency or who – as owner or manager of a company, cooperative or other legal person established for gainful purposes – carries out actual work in addition to the activities falling within this field of activity. The citizens currently indicated in Government Decree no. 179/2024 (of 8 July) are the following: Bosnia and Herzegovina, Republic of North Macedonia, Republic of Belarus, Moldova, Republic of Montenegro, Russian Federation, Serbia, Ukraine.

If the student or university lecturer has **the right of free movement and residence**, they are subject to Act I of 2007 on the Admission and Residence of Persons with the Right of Free Movement and Residence. The personal scope of application is regulated by Section 1(1) of this Act. The detailed rules on the right of residence exceeding ninety days within one hundred and eighty days are set out in Sections 6 to 15.

Please take note of the above and kindly forward it to the relevant parties.